COUNTY OF ELBERT

215 Comanche Street
P.O. Box 7
Kiowa, Colorado 80117

Mike Buck, Commissioner District 1
Dallas Schroeder, Commissioner District 2
Byron McDaniel, Commissioner District 3

INVITATION FOR BID
2026 – 006 Fencing

ESTIMATED IFB SCHEDLE OF EVENTS	
Issue IFB	Tuesday, October 6, 2026 4:00 PM local time
Deadline for vendor submission of written inquiries/questions.	Tuesday, October 20, 2026 1:00 PM local time
Bid SUBMISSION DEADLINE	**Tuesday, October 27, 2026** **12:30 PM local time**
BID OPENING LOCATION: **215 Comanche St. Kiowa, CO 80117**	**Tuesday, October 27, 2026** **1:00 PM local time**

BIDDER'S CERTIFICATION

We offer to furnish to Elbert County the materials, supplies, products and/or services requested in accordance with the specifications and subject to the terms and conditions of the purchase(s) described herein:

BIDDER: _____

ADDRESS: _____

CITY: _____ **STATE:** _____ **ZIP:** _____
TELEPHONE NUMBER: _____ **FAX NUMBER:** _____

EMAIL: _____

BY: _____
(Printed or Typed Name)

_____
(Written Signature)

TAXPAYER I.D. NUMBER: _____

Signature constitutes acceptance of all terms and conditions listed on this form and all documents attached.

Bids shall be delivered to the County's finance department (you must provide both email, and physical copies) by the cutoff date and shall be date and time stamped upon receipt to ensure compliance with the bid deadline. Bids physically delivered to the finance department at 214 Comanche St. PO Box 7, Kiowa, CO 80117 must be physically handed to a finance department or individual designated by the finance department to receive bids within the bid period. Bids emailed to the finance department with the subject line "2026 – 006 FENCING", shall be sent to accountspayable@elbertcounty-co.gov. Elbert County reserves the right to reject any or all bids or accept any presented which meet or exceed the specifications which are deemed to be in the best interest of Elbert County and will not necessarily be bound to accept the low bid. The County also reserves the right to waive formalities or informalities contained in said bid, and to negotiate any optional items with the successful bidder.

BID CONDITIONS AND PROVISIONS:

All bids must be submitted on the forms provided and in accordance with all terms, conditions, specifications, and stipulations contained herein. Bidders shall carefully read and be familiar with all terms, conditions, specifications, and stipulations contained in this IFB, which shall become part of the final contract.

All bids must be signed by a duly authorized official of the company. The completed and signed bid must be returned to the Public Works Department on or before the due date and time shown on Page 1.

All participating bidders, by their signature hereunder, shall agree to comply with all of the conditions, requirements and instructions of this IFB as stated or implied herein. Any alteration, erasure or interlineation by the bidder in this IFB shall constitute cause for rejection by the County. Exceptions or deviations to this IFB must not be added to the IFB pages but must be on company letterhead and accompany the bid response. Should the County omit anything from this IFB that is necessary to a clear understanding of the work, or should it appear that various instructions are in conflict, then the bidder shall secure written instructions from the County at least forty-eight (48) hours prior to the time and date of the bid opening shown on Page 1.

All bidders are required to complete all the information requested in this IFB. Failure to do so may result in the disqualification of the bid. When omitting a bid on an item, please insert the words "NO BID".

Prices stated must be in the units specified. In the case of a discrepancy between the unit price and extension, the unit price shall be considered correct. Minor details omitted by oversight will not constitute an excuse for their omission.

Bids shall be firm quotations subject to acceptance or rejection within sixty (60) days of the bid opening date.

A bidder may withdraw their bid at any time prior to the scheduled time of receipt; however, persons or firms withdrawing bids may not submit another bid in this matter.

The County reserves the right to negotiate optional items and/or services with the successful bidder.

The successful bidder may be required to provide proof of and the required limits of liability insurance, including Workers' Compensation. This proof of insurance must be in the form of a "Certificate of Insurance" and must show coverage in the amounts, but not less than the amounts specified by the Laws of the State of Colorado for the duration of a contract issued as a result of this IFB. Additionally, the County will be notified of any changes occurring in this coverage while proving to the County that such changes do not in any way affect the minimum liability insurance required for this bid.

The County will not be responsible for any goods delivered or services performed without its purchase order, signed by an authorized representative of the County's Finance Department.

All information submitted in response to this IFB may be subject to disclosure under the Open Records Act. Bidders are discouraged from providing information that the bidder considers confidential and/or privileged as part of a response to this invitation.

The successful bidder may be required, as a provision of this IFB, to submit proof of compliance with governmental health and safety codes, regulations and standards, as appropriate.

The County reserves the right to waive any technical or formal errors or omissions and to reject any and all bids, or to award a contract for the items herein, either in part or in whole, if it deems it to be in the best interest of the County to do so.

The successful bidder shall be in complete compliance with all of the specifications, terms and conditions of this IFB as outlined above. The County shall have the right to inspect the facilities and equipment of the successful bidder to ensure such compliance.

No bid shall be accepted from, and no contract will be awarded to, any person, firm or corporation that is in arrears to Elbert County, upon debt or contract, or that is a defaulter, as surety or otherwise, upon any obligation to the County, or that has failed to attain or demonstrate compliance with any law, ordinance, regulation, or contract term or condition as may be provided for or required in any County contract, or that may be deemed irresponsible or unreliable by the County. Bidders may be required to submit satisfactory evidence that they have a practical knowledge of the particular work bid upon and that they have the necessary financial resources to perform and complete the work outlined in this IFB.

The contractor agrees to abide by all the laws, regulations and administrative rulings of the United States, the State of Colorado and the County of Elbert, securing all necessary licenses and permits in connection with this IFB.

BID CONDITIONS AND PROVISIONS (continued):

All materials furnished or services performed under the terms of a contractual agreement issued as a result of this IFB shall comply with the requirements and standards specified in the Williams-Steiger Occupational Safety and Health Act of 1970 (Public Law 91-596), as well as with other applicable federal, state and local codes.

In the event that this IFB requires a formal contract to be prepared by the County, the successful bidder will properly sign and furnish any performance bonds, insurance, Workers' Compensation, etc. as may be required by the County within ten (10) days (unless a longer period is allowed by the County) from the date of receipt of the formal contract forms.

All bidders must take into consideration that only the County's contract documents will be used in the finalization of any agreement issued as a result of this IFB. Bidders are responsible for reviewing such documents prior to submitting their response.

All bidders must submit written disclosure of any known potential conflicts of interest that may result during the course of performance of the services listed herein.

ETHICAL STANDARDS:

It shall be a breach of ethical standards for any person to offer, give, or agree to give any employee or former employee, or for any employee or former employee to solicit, demand, accept, or agree to accept from another person, a gratuity or an offer of employment in connection with any decision, approval, disapproval, recommendation, preparation of any part of a program requirement or a purchase request, influencing the content of any specification or procurement standard, rendering of advice, investigation, auditing, or in any other capacity in any proceeding of application, request for ruling, determination, claim or controversy, or other particular matter, pertaining to any program requirement or a contract or subcontract, or to any solicitation or IFB therefore.

It shall be a breach of ethical standards for any payment, gratuity, or offer of employment to be made by or on behalf of a subcontractor under a contract to the prime contractor or higher tier subcontractor or any person associated therewith, as an inducement for the award of a subcontract or order.

In the event that any gratuities or kickbacks are offered or tendered to any County employee or representative, the bid response shall be disqualified and shall not be reinstated.

NON-COLLUSIVE BIDDING CERTIFICATION:

By the submission of this bid, the bidder certifies that:

1. The bid has been arrived at by the bidder independently and has been submitted without collusion with any other bidder.

2. The contents of the bid have not been communicated by the bidder; nor, to its best knowledge and belief, by any of its employees or agents, to any person not an employee or agent of the bidder or its surety on any bond furnished herewith and will not be communicated to any such person prior to the official opening of this bid.

3. No bidder shall submit more than one bid, to include alternate bid or bids, for this purchase.

NON-DISCRIMINATION IN EMPLOYMENT:

In connection with the performance of work under a contract issued as a result of this IFB, the contractor agrees not to refuse to hire, discharge, promote or demote, or to discriminate in matters of compensation against any person otherwise qualified, solely because of race, color, religion, national origin, gender, age, military status, sexual orientation, marital status, or physical or mental disability. The contractor further agrees to insert the foregoing provision in all subcontracts hereunder.

INDEMNIFICATION:

Indemnification by the County. The County cannot and by this agreement does not agree to indemnify, hold harmless, exonerate, or assume the defense of the bidder or any other person or entity whatsoever, for any purpose whatsoever.

Indemnity. The bidder shall defend, indemnify and hold harmless the County, its officers, agents and employees from any and all claims, demands, suits, actions or proceedings of any kind or nature whatsoever, including Workers' Compensation claims, in any way resulting from or arising out of any agreement issued as a result of this IFB; provided, however, that the bidder need not indemnify or save harmless the County, its officers, agents and employees from damages resulting from the negligence of the County's officers, agents and employees.

INDEPENDENT CONTRACTOR:

Notwithstanding any provision of this Agreement, all personnel assigned by the Consultant to perform work under this Agreement shall be and remain at all times, employees of the Consultant for all purposes. THE INDEPENDENT CONTRACTOR IS NOT ENTITLED TO WORKERS' COMPENSATION BENEFITS THROUGH THE COUNTY AND IS OBLIGATED TO PAY FEDERAL AND STATE INCOME TAX ON ANY MONIES EARNED PURSUANT TO THE CONTRACT RELATIONSHIP.

ASSIGNMENT OF PURCHASE ORDER OR CONTRACT:

A supplier or contractor may not assign or otherwise transfer any of its rights or obligations under any purchase order or contract made and entered into pursuant to the County IFB without the prior written approval of the County Purchasing Division.

CANCELLATION:

The County reserves the right to cancel the whole or any part of a contract issued as a result of this IFB due to failure of the contractor to carry out any term, promise or condition of the contract. The County will issue a written notice of default to the contractor for failing to act in compliance with the terms and conditions of such contract.

EXAMINATION OF RECORDS:

The contractor agrees that the County shall, until the expiration of three (3) years after the final payment under an agreement issued as a result of this IFB, have access to and the right to examine any directly pertinent books, documents, papers and records of the contractor involving transactions of such agreement.

PRICE, PAYMENT, AND DELIVERY:

1. All prices shall be firm and fixed for the specified time frame.

2. All payment terms shall be "Net 30"; consideration will be given to any discounts offered for payments made earlier than "Net 30", please explain.

3. All deliveries will be "F.O.B. ~ Destination".

TAXES:

All price quotations shall reflect all applicable tax exemptions for Elbert County:

1. Federal Registration Number: 84-6000763

2. State Registration Number: 08-033800

INVITATION FOR BID (IFB) #2026-006
FENCING

GENERAL INFORMATION:

The contract placed with the successful bidder, as a result of this IFB, shall be a Blanket Purchase Agreement. The Blanket Purchase Agreement authorizes, but does not obligate, the County to contract for any minimum or maximum dollar amount or quantity of service.

The County's intent is to award only one (1) firm for the provision of equipment as specified; however, the results of this IFB does not obligate the County in any manner. Bid comparisons, reference checks, and past experience will be considered in the evaluation process.

If additional space is required, bidders may provide information on company letterhead.

The successful bidder will furnish to Elbert County Government, at no additional cost, any reports that may be needed in tracking the ordering and usage of said services within the County. These reports will also be used to verify contract pricing.

All questions relating to this IFB shall be directed to either of the following:

Monty Hankins, Public Works Director
monty.hankins@elbertcounty-co.gov

Corynne Zodrow, Public Works Lead Admin.
Corynne.zodrow@elbertcounty-co.gov

If it becomes necessary to revise any part of this IFB or if additional data is necessary to enable an exact interpretation of the provisions of this request, an addendum will be issued. It is the responsibility of the bidder to ensure that they have received all addendums prior to submitting their bid response.

MANDATORY REQUIREMENTS:

1. Signed Bidders Certification (Page 1 of IFB)
2. All bid responses shall include all pricing information relative to providing all equipment and performing all services as described in the specifications section.
    a. See attached bid specifications
3. All bid responses should provide detailed information in regard to any value-added equipment, products, and/or services (i.e., as needed for emergency operations and/or special events) that are being offered and/or considered as a part of this potential award.
4. All bid responses should provide an explanation as to why your company would stand out above all others and why your company should be awarded the contract resulting from this IFB.
5. Pricing for additional equipment and/or services shall be provided, as requested. Pricing for additional equipment and/or services shall be consistent with all pricing that has already been provided.
6. Bids shall be delivered to the County's finance department (both email and physical copies) shall be delivered by the cutoff date and shall be date and time stamped upon receipt to ensure compliance with the bid deadline. Bids physically delivered to the finance department at 215 Comanche St. PO Box 7, Kiowa, CO 80117 must be physically handed to a finance department or individual designated by the finance department to receive bids within the bid period. Bids emailed to the finance department shall be sent to accountspayable@elbertcounty-co.gov
7. Bid opening shall occur in the BOCC meeting room located at 215 Comanche St. PO Box 7, Kiowa, CO 80117 at an appointed time and date. Bid opening shall be open to the public, and during normal business hours of the County, Monday through Thursday, between 7:30 and 5:00 p.m. and shall require the presence of a Finance Department staff member to open all prospective bids.

2026-006 Fencing Scope of Work

Project Overview:

Elbert County is seeking bids for the installation of fencing at two designated locations across the county. The project will include fencing installation along with gate placements, as specified below.

Project Locations & Specifications:

1. **Elbert County Public Works Department Shop Address:** 11330 CO-86, Kiowa, CO 80117

    - **North side:**
        - Removal of Barbwire – 690’
        - Install Chain-link – 686’

    - **East side:**
        - Barbwire to remain in place
            - 4’ offset of barbwire and new Chain-link.
        - Install Chain-link – 209’

    - **South side:**
        - Barbwire to remain in place
            - 4’ offset of barbwire and new Chain-link.
        - Install 12’ Agricultural gate on barbwire fence side. (Map of property shows where the gate should go.)
        - Install Chain-link – 2,061’
        - Install 12’ Chain-link gate. (Map of property shows where the gate should go.)
        - Install 4’ Chain-link man gate on the SW corner. (Map of property shows where the gate should go.)

    - **West side:**
        - Install Chain-link – 607’

        - Remove Barbwire – 607’

    - **Enclosure for Parts:**
        - Chan-link enclosure - 20’x60’
        - Install (2) 14’ Chain-link gates

        - Removal of asphalt to set posts

        - 1’ offset from back of fence to the edge of the asphalt to the west of the enclosure.

    - **+/- 20’**

2. **Elbert County Simla Fuel Tanks Address:** 809 Ute Ave., Simla, CO 80835
    - Total Fence Length: 100 feet
    - Gate Requirement: Four walk-thru gates

Construction & Material Requirements:

In addition to pricing, bids should include detailed descriptions of materials, construction specifications, and finish profiles for chain-link fences and gates. The following components must be specified:

- Fence and gate posts, rails, and fittings
- Chain-link, reinforcements, and attachments
- Gates and hardware

Supporting Documents:

The following documents are attached to this scope of work:

1. Specifications and real-time images of the fencing installed by Split Rail Fence during the construction of the Elbert County Public Works Department Shop in Kiowa.
2. Site plans for project locations.

Interested bidders must provide all requested details in their proposals, ensuring compliance with project specifications.